Canada Revenue Agency | Agence du revenu du Canada

ASKING FOR A CLEARANCE CERTIFICATE

Instructions

Who can request a Clearance Certificate?

Use this form if you are the legal representative for an estate, business, or property and you are asking for a clearance certificate before distributing the assets of the estate, business, or trust. A legal representative includes an executor, administrator, liquidator, trustee, or like person other than a trustee in bankruptcy. The TX19 form should be signed by all legal representatives.

Important – Do not send us this form until:

- you have filed the required tax return(s) and have received the related notice(s) of assessment;
- you have received the notice(s) of reassessment if you sent a request(s) for reassessment; and
- you have paid or secured all income taxes (including the provincial or territorial taxes we administer), Canada Pension Plan contributions, employment insurance premiums, and any related interest and penalties.

Do **not** attach this form to the tax return.

For more information, refer to Information Circular IC82-6, *Clearance Certificate,* visit **cra.gc.ca**, or call **1-800-959-8281**.

Required Documents

Important – If the following required documents are not provided, your request will not be processed.

For T1 Deceased and T3 Trust, we require:

- a complete and signed copy of the taxpayer's will, including any codicils, renunciations, disclaimers, and all probate documents if applicable. If the taxpayer died intestate (without a will), attach a copy of the document appointing an administrator (for example, the Letters of Administration or Letters of Verification issued by a provincial court);
- a copy of the trust agreement or document for inter vivos trusts;
- any other documents that are necessary to prove that you are the legal representative;
- a detailed list of the assets that were owned by the deceased at the date of death, including all assets that were held jointly and all registered retirement savings plans and registered retirement income funds (including those with a named or designated beneficiary), their adjusted cost base (ACB) and fair market value (FMV) at the date of distribution by the estate;
- a list, description, and the ACB of all assets transferred to a trust as well as the FMV at the date of distribution;
- a detailed statement of distribution of the assets of the trust or the deceased's estate to date;
- a statement of proposed distribution of any holdback or residual amount or property;
- the names, addresses, and social insurance numbers or account numbers of any beneficiaries of property other than cash; and
- a completed Form T1013, *Authorizing or Cancelling a Representative*, signed by all legal representatives, authorizing a representative such as an accountant, notary, or lawyer if you want us to communicate with any other person or firm, or you want the clearance certificate sent to any address other than your own.

For T2 (Corporation), we require:

- a copy of the director's or shareholder's resolution confirming the intention to dissolve the corporation and the date of dissolution;
- a completed Form RC59, *Business Consent*, signed by all legal representatives, authorizing a representative such as an accountant or lawyer if you want us to communicate with any other person or firm, or if you want the clearance certificate sent to any address other than your own; and
- a statement of distribution of the company assets to date as well as the scheme of the distribution of company assets at the date of wind-up.

Additional documents or information may be requested to support this application.

Where to send this form

Send this form to your regional tax services office.

Atlantic Region:

Nova Scotia Tax Services Office
Estates and Trusts Audit
47 Dorchester Street
Sydney NS B1P 6K3

Quebec Region:

Western Quebec Tax Services Office
Audit – Clearance Certificates
44 du Lac Avenue
Rouyn-Noranda QC J9X 6Z9

Ontario Region and Nunavut:

Sudbury Tax Services Office
Audit – Clearance Certificates
1050 Notre Dame Avenue
Sudbury ON P3A 5C1

Prairies Region and the Northwest Territories:

Winnipeg Tax Services Office
Audit – Clearance Certificates
Post Office Box 1022
Winnipeg MB R3C 2W2

Pacific Region:

For Vancouver, Fraser Valley, and Northern BC/ Yukon tax services offices, send it to:

Vancouver Tax Services Office
Estates and Trusts Audit
9755 King George Boulevard
Surrey BC V3T 5E1

For Victoria and Southern Interior BC tax services offices, send it to:

Vancouver Island Tax Services Office
Estates and Trusts Audit
9755 King George Boulevard
Surrey BC V3T 5E1

(Vous pouvez obtenir ce formulaire en français à **arc.gc.ca/formulaires** ou en composant le **1-800-959-7383**.)

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